

INTERNAL RISK MEMORANDUM CONFIDENTIAL

Author: TechVenture Legal Department

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Subject: Risk assessment and strategy TechVenture v CloudAxis

Classification: Attorney-Client Privileged Do Not Distribute

KEY DATES REQUIRING IMMEDIATE ACTION

- May 6, 2026: CloudAxis deadline for root cause analysis and data restoration plan
- May 8, 2026: CloudAxis data restoration verification deadline
- May 9, 2026: Executive negotiation call AI-suggested, confirm attendance
- May 10, 2026: Internal decision on regulatory filing
- May 12, 2026: Mediation session in Tunis (if proceeding)
- May 15, 2026: Regulatory notification filing deadline (if required)
- May 20, 2026: Arbitration trigger date if mediation fails or does not occur

Legal Risk Assessment

RISK 1 CLOUDAXIS FORCE MAJEURE DEFENSE (HIGH RISK)

CloudAxis may argue the migration was an emergency response to a zero-day vulnerability, activating force-majeure cyber-threat provisions. However, IT forensics evidence shows the migration was pre-scheduled on April 24, one day before the alleged vulnerability discovery. This strongly undermines the defense. TechVenture should request the vulnerability disclosure report and compare dates. Strength of TechVenture position on this issue: HIGH.

RISK 2 DATA LOSS QUANTUM DISPUTE (MEDIUM RISK)

CloudAxis claims only 18 hours of data loss. IT forensics confirms 24+ hours. Backup logs are the strongest evidence. CloudAxis may contest the methodology. Request full backup infrastructure logs before May 8 data restoration deadline. Strength of TechVenture position on this issue: MEDIUM-HIGH.

RISK 3 REGULATORY EXPOSURE (HIGH RISK)

Payroll data for 214 employees is personal data under Act 63-2004. The filing deadline of May 15 is non-negotiable once the obligation is confirmed.

Failure to file if required could expose TechVenture to regulatory penalties.

Priority: get external regulatory counsel opinion by May 6.

RISK 4 ISO 27001 CERTIFICATE BREACH (LOW COMPLEXITY, HIGH VALUE)

The expired certificate is independently documented, easy to prove, and directly breaches the agreement. This is TechVenture's strongest standalone breach claim. CloudAxis cannot easily dispute the expiry date from the public certificate record. This breach alone may support termination rights regardless of the SLA debate.

RISK 5 CLOUDAXIS TERMINATION DEFENSE (MEDIUM RISK)

CloudAxis will argue that termination requires two consecutive months below SLA rather than a single month. The agreement is ambiguous. However, the combination of SLA breach, data loss, late notification, and certificate expiry may collectively satisfy the material breach threshold even for a single incident.

Legal counsel to confirm interpretation before the May 9 call.

RECOMMENDED STRATEGY

Short term (before May 9 call):

- Obtain full backup logs and zero-day vulnerability evidence from CloudAxis
- Confirm regulatory filing obligation
- Prepare settlement counter-proposal with minimum acceptance criteria
- Preserve all evidence do not communicate data breach liability admissions

Medium term (May 9-15):

- Use May 9 call to assess CloudAxis's real settlement intent
- If settlement not achievable, confirm mediation for May 12
- File regulatory notification if confirmed required by May 15

Long term (May 15+):

- If mediation fails: prepare arbitration brief
- Consider platform migration to reduce operational dependency
- Document all business impact to strengthen damages claim

Minimum Settlement Terms (legal recommendation)

- Full service credit for April: 34,500 TND (100% of monthly fee)